

**IN THE SUPERIOR COURT OF
THE STATE OF WASHINGTON
FOR THE COUNTY OF KING**

ZACKARIAH BENNETT,

Plaintiff,

vs.

MELVINA MANNING,

Defendant.

Case No.: 23-2-11352-7 SEA

MOTION FOR JUDICIAL RECUSAL

**TO: THE CLERK OF THE COURT AND TO ALL PARTIES AND THEIR COUNSEL OF
RECORD:**

Plaintiff, Zackariah Bennett, respectfully moves for the recusal or disqualification of The Honorable Jaime Hawk from presiding over this case on the grounds of judicial bias and lack of impartiality. As described below, significant procedural irregularities and the appearance of bias have undermined confidence in the court's ability to fairly adjudicate this matter.

I. LEGAL STANDARD FOR JUDICIAL RECUSAL

Under Washington law, a judge must disqualify themselves in any proceeding in which their impartiality might reasonably be questioned. Canon 3 of the Washington Code of Judicial Conduct (CJC) mandates that judges avoid the appearance of bias or prejudice and take steps to preserve public confidence in the integrity of the judicial process.

Washington courts have emphasized that actual bias is not required for recusal; the appearance of bias alone is sufficient when it undermines the fairness of the proceedings (*State v. Gamble*, 168 Wn.2d 161, 187-88 (2010)).

II. GROUNDS FOR JUDICIAL RECUSAL

1. Lack of Consideration of Plaintiff's Arguments:

- The Order Denying Plaintiff's Motion for Reconsideration makes no reference to or acknowledgment of any key points raised, suggesting the arguments were not adequately considered.

- These arguments directly challenge the basis of the court's ruling, but the denial order fails to address or engage with them, raising concerns that the court disregarded Plaintiff's claims entirely.

2. Perceived Judicial Bias in Procedural Matters:

- During the hearing on Defendant's Motion for Summary Judgment, the court permitted Defendant's counsel, Ms. Nancy Gass, to bypass standard filing and service procedures. Counsel submitted her proposed order directly to the court's bailiff via email without serving Plaintiff, contrary to the requirements of Civil Rule 5.

- The court's decision to accept this proposed order without ensuring Plaintiff's access to it deprived Plaintiff of the opportunity to review or object to its contents, creating the appearance of favoritism toward Defendant's counsel.

3. Procedural Irregularities and Impact on Due Process:

- The court stated during the hearing that it would draft its final order after receiving Defendant's proposed order. However, by excluding Plaintiff from the process, the court compromised the transparency and fairness required in judicial proceedings.

III. RELIEF REQUESTED

For the reasons set forth above, Plaintiff respectfully requests that:

1. The Honorable Jaime Hawk recuse herself from presiding over this case to ensure the proceedings are conducted impartially and in accordance with Washington law.
2. This case be reassigned to a different judicial officer to restore confidence in the fairness and integrity of the adjudication process.

DATED this 21st day of November, 2024.

Respectfully submitted,

Zackariah Bennett



Plaintiff Pro Se
Mtn to Recuse/Disq.

468 words
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